



REPUBLIC OF THE PHILIPPINES
City of San Juan
METRO MANILA

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OFFICE OF THE SANGGUNIANG PANLUNGSOD

CITY ORDINANCE NO. 3

Series of 2022

AN ORDINANCE AMENDING CERTAIN PROVISIONS OF CITY ORDINANCE NO. 82, SERIES OF 2018 ENTITLED "CITY OF SAN JUAN PPP CODE" AND CITY ORDINANCE NO. 4, SERIES OF 2021 ENTITLED "NO-CONTACT APPREHENSION POLICY ORDINANCE OF THE CITY OF SAN JUAN"

Sponsored by: Councilors Kit R. Peralta, Raissa H. Laurel-Subijano and Herbert O. Chua

Co-sponsored by: Councilors Arthur Alfredo E. Aquino, Paul Anthony D. Artadi, Rolando M. Bernardo, Bea Celine D. De Guzman, Jannah A. Ejercito, Mary Joy A. Ibuna-Leoy, Michael Cristopher R. Mathay, Vincent Rainier M. Pacheco, Victor Jose L. Reyes, Franchesco Paul R. Velasco and Ariel I. Atad

WHEREAS, Section 458 (a) (5) (v) (vi) of Republic Act 7160, otherwise known as the Local Government Code of 1991, empowers the Sangguniang Panlungsod to enact ordinances for the general welfare of the City and its inhabitants, and shall:

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"(v) Regulate the use of streets, avenues, alleys, sidewalks, bridges, parks and other public places and approve the construction, improvement, repair and maintenance of the same; establish bus and vehicle stops and terminals or regulate the use of the same by privately-owned vehicles which service the public; regulate garages and the operation of conveyances for hire; designate stands to be occupied by public vehicles when into in use; regulate the putting up of signs, signposts, awnings and awning posts on the streets; and provide for the lighting, cleaning and sprinkling of streets; and public places;

(vi) Regulate traffic on all streets and bridges; prohibit encroachments or obstacles thereon, and when necessary in the interest of public welfare, authorize the removal or encroachments and illegal constructions in public places;"

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WHEREAS, with hundreds of thousands of vehicles plying through City roads and thoroughfares on a daily basis, traffic enforcers of the City's Traffic and Parking Management Office (TPMO) are hard-pressed to monitor traffic rule violators, as well as traffic in general within the City 24/7;

WHEREAS, in order to augment the limited number of traffic enforcers of the TPMO tasked with managing the roads and thoroughfares of San Juan City and in order to instill discipline among motorists, it is essential to set up a digital monitoring system on all major streets of the City that will function 24/7 even during less-ideal circumstances relating to typhoons and other calamities;

WHEREAS, Section 14 of Chapter 3 of the City of San Juan PPP Code defines the composition and functions of the PPP Selection Committee (PPP-SC);

WHEREAS, it is necessary to amend Section 14 in order to aid the PPP-SC in the performance of its functions, enhance its composition, ensure the continuity of the body and ease the enforcement of the ordinance even pending the issuance of the implementing rules.

NOW THEREFORE, BE IT ORDAINED AS IT HEREBY ORDAINED, by the Sangguniang Panlungsod of the City of San Juan, Metro Manila, in a session duly assembled that:

SECTION 1. TITLE - This Ordinance shall be known as "AN ORDINANCE AMENDING CERTAIN PROVISIONS OF CITY ORDINANCE NO. 82, SERIES OF 2018 ENTITLED "CITY OF SAN JUAN PPP CODE" AND CITY ORDINANCE NO. 4, SERIES OF 2021 ENTITLED "NO-CONTACT APPREHENSION POLICY ORDINANCE OF THE CITY OF SAN JUAN"

SECTION 2. AMENDMENT TO SECTION 14, CHAPTER 3 OF CITY ORDINANCE NO. 82, SERIES OF 2018 - Section 14, Chapter 3 of City Ordinance No. 82, Series of 2018, providing the member of the Selection Committee is hereby amended by adding the City Accountant, which shall read as follows:

"Section 14. PPP Selection Committee. –

(a) There is hereby created a PPP Selection Committee or PPP-SC for purposes of selecting a PSP for a specific PPP Project. The PPP-SC shall be composed of the following voting members:

- i. Chairperson – The City Administrator
- ii. Secretary – The City Head of Investment & Promotion Center
- iii. The City Treasurer
- iv. The City Planning and Development Officer
- v. Chairperson, Committee on Trade, Commerce, Entrepreneurship & Consumer Protection
- vi. Chairperson, Committee on Public Order, Safety & Illegal Drugs
- vii. Chairperson, Committee on Public Works, Transportation, Communication & Information Technology
- viii. The City Legal Officer
- ix. The City Engineer
- x. The City Accountant

For this purpose, the staff of CIPC shall serve as support staff of the PPP-SC.

A quorum of the PPP-SC shall be composed of a simple majority of all voting members.

The PPP-SC with the approval of the City Mayor, may invite provisional non-voting members from the City or National Government Agencies, regulatory agencies, National Economic Development Authority, Department of the Interior and Local Governments, private sector, non-governmental and people's organization to observe in the proceedings of the PPP-SC;

(b) The PPP-SC shall be responsible for all aspects of the pre-selection and selection process, including among others, the preparation of the Feasibility Study and selection/tender documents, determination of the minimum designs, performance, standards/specifications, economic parameters and reasonable

rate of return or tariff setting mechanism appropriate to the PPP Modality; drafting or evaluation of the PPP contract; publication of the invitation to apply for eligibility and submission of proposals or comparative proposals; defining the eligibility requirements, appropriate form and amount of proposal securities, and schedules of the selection and challenge processes; pre-qualification of prospective PSPs, bidders or challengers; conduct of pre-selection conferences and issuance of supplemental notices; interpretation of the rules regarding the selection process; conduct of the selection or challenge process; evaluation of the legal, financial and technical aspects of the proposals; resolution of disputes between PSPs and challengers; defining the appeals mechanisms; and recommendation for the acceptance of the proposal and/or for the award of the contract.

In order to aid the PPP-SC in the performance of its functions as stated in the previous paragraph, pending the issuance of the implementing rules, the PPP-SC shall likewise be empowered to issue orders and/or resolutions defining the parameters and requirements involving all aspects of the pre-selection and selection process, including the determination and imposition of reasonable fees and costs, as may be deemed necessary.

For proper implementation, the PPP-SC may hire a third party consultant, known expert or with experience and track record in PPP projects, to prepare the above requirement of PPP-SC.”

SECTION 3. AMENDMENT TO SECTION 3 OF CITY ORDINANCE NO. 4, SERIES OF 2021- Section 3 of City Ordinance No. 4, Series of 2021, providing the penalties for traffic violators as a result of NCAP is hereby amended, which shall read as follows:

“Section 3. PENALTY FOR TRAFFIC VIOLATORS AS A RESULT OF NCAP –
TECV as a result of the NCAP shall be meted the penalty or fine, as follows:

Disobedience to Signs	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Keeping Right of Double Yellow Line	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Driving Over a Yellow Box	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Reckless Driving	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding offenses	: 4,000.00
Unregistered Motor Vehicle		: 3,000.00

Obstruction to Driver's View or	1 st Offense	: 2,000.00
Driving Mechanism	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
No Safety Helmet for Motorcyclist and back ride/passenger	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
None use of Seatbelts	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Parking and Waiting in Prohibited Areas	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Violation of Speed Limits	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Counter Flow Driving	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Anti-Distracted Driving	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Failure to Attach or Improper Attachment/Tampering of Authorized Vehicle License Plate and/or Third Plate Sticker	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00
Improper Change of Lane	1 st Offense	: 2,000.00
	2 nd Offense	: 3,000.00
	3 rd & succeeding Offenses	: 4,000.00

All other violations under the Traffic Code and its amendments and revisions can be apprehended under the NCAP.

The registered owner of a vehicle, as appearing in the Land Transportation Office database, automatically captured by the Traffic Enforcement System shall be known henceforth as a "Traffic Enforcement Camera Violator (TECV)".

For No-Contact Apprehension Policy violations, the Notice of Violation (NOV), shall be the sole document to be sent to the registered owner of the vehicle or TEVC.

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In case of multiple violations, whereby the traffic violator was apprehended by the traffic enforcers and was also caught on camera by the NCAP for a totally different traffic violation, or a violation of another ordinance, the corresponding penalties for the violation committed shall accordingly be imposed by the traffic enforcer and NCAP. In case the traffic violator was apprehended by both the NCAP and the traffic enforcer for the same offense, the latter's apprehension shall prevail over NCAP.

SECTION 4. DEFINITION OF TERMS OF ADDITIONAL TRAFFIC VIOLATIONS –

- a. Counter Flow Driving – No person shall operate or drive a motor vehicle against the flow of traffic or on any road recklessly or without reasonable caution considering the width, traffic, grades, crossing, curvatures, visibility and other conditions of the road and the conditions of the atmosphere and whether to endanger the property or the safety or the right of any person or to cause excessive or unreasonable damage to the road.
- b. Anti-Distracted Driving – It is the use of mobile phones or any other electronic devices that can distract the attention of the driver whether in motion or temporarily stopped at a traffic light or any intersection on any public thoroughfare, highway, or street which is strictly prohibited.
- c. Failure to Attach or Improper Attachment/Tampering of Authorized Vehicle License Plate and/or Third Plate Sticker – This includes the attachment of any unauthorized plate/s or any accessory or device to and/or around the authorized motor vehicle license plate, or any manner of attachment that impedes in any way the visibility or reflectivity of the authorized motor vehicle license plate and/or third plate sticker.
- d. Improper Change of Lane – the following are considered as Improper Change of Lane Violations: swerving in an abrupt and careless manner; swerving without the use of signals; and, swerving across solid lines.

SECTION 5. SEPARABILITY CLAUSE – If, for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid by a competent court, the remaining sections or provisions not affected thereby shall continue to be in full force and effect.

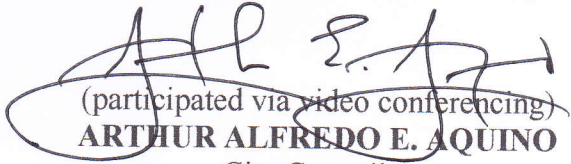
SECTION 6. REPEALING CLAUSE – All Ordinances contrary to or inconsistent with any of the provisions of this Ordinance is hereby repealed and/or modified accordingly.

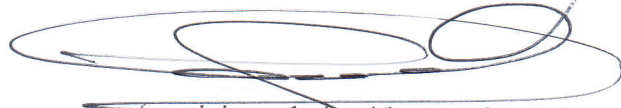
SECTION 7. The authority, issuance and approval hereof is subject to and conditioned upon compliance to certain restrictions and to all existing laws, circulars, rules and regulations.

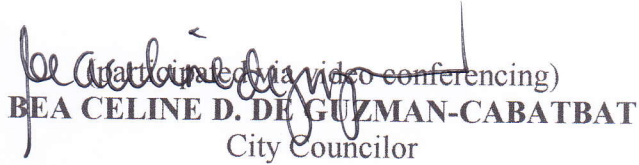
SECTION 8. EFFECTIVITY – This Ordinance shall take effect immediately upon publication on one (1) leading newspaper of general circulation.

(participated via video conferencing)
ARIEL I. ATAD
City Councilor

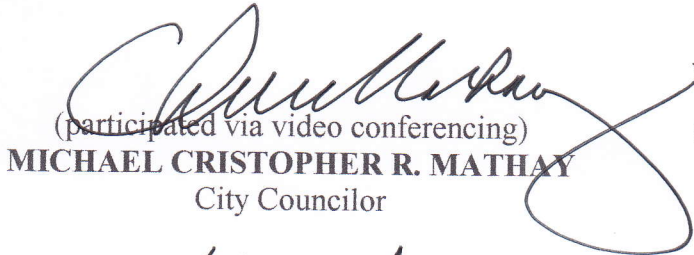
(participated via video conferencing)
HERBERT O. CHUA
City Councilor


(participated via video conferencing)
ARTHUR ALFREDO E. AQUINO
City Councilor


(participated via video conferencing)
PAUL ANTHONY D. ARTADI
City Councilor


(participated via video conferencing)
BEA CELINE D. DE GUZMAN-CABATBAT
City Councilor

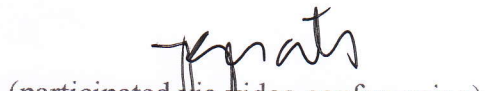

(participated via video conferencing)
MARY JOY A. IBUNA-LEOY
City Councilor


(participated via video conferencing)
MICHAEL CRISTOPHER R. MATHAY
City Councilor

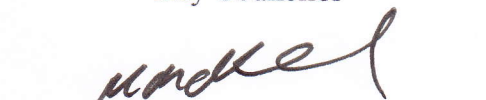

(participated via video conferencing)
VICTOR JOSE L. REYES
City Councilor


(participated via video conferencing)
KIT R. PERALTA
Sergeant-at-Arms
City Councilor


(participated via video conferencing)
FRANCESCO PAUL R. VELASCO
Assistant Minority Floor Leader
City Councilor


(participated via video conferencing)
JANNAH A. EJERCITO
Minority Floor Leader
City Councilor


(participated via video conferencing)
VINCENT RAINIER M. PACHECO
Assistant Majority Floor Leader
City Councilor


(participated via video conferencing)
RAISSA H. LAUREL-SUBIJANO
Majority Floor Leader
City Councilor


(participated via video conferencing)
ROLANDO M. BERNARDO
President Pro-Tempore
City Councilor

I HEREBY CERTIFY THAT THIS ORDINANCE
HAS BEEN DULY APPROVED BY THE
SANGGUNIANG PANLUNGSOD ON JANUARY 24, 2022


(participated via video conferencing)
RIA P. ESTRELLA-PADILLA
City Government Department Head II
Secretary, Sangguniang Panlungsod

ATTESTED:

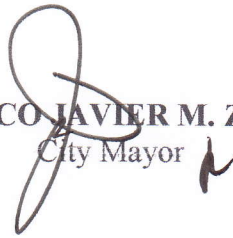


(participated via video conferencing)

JOSE WARREN P. VILLA

Presiding Officer
City Vice Mayor

APPROVED:



FRANCISCO JAVIER M. ZAMORA

City Mayor

